

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF TSVETKOV AND OTHERS v. RUSSIA

(Applications nos. 17230/19 and 4 others –
see appended list)

JUDGMENT

STRASBOURG

10 November 2022

This judgment is final but it may be subject to editorial revision.



In the case of Tsvetkov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President,*

Andreas Zünd*,*

Frédéric Krenc*, judges,*

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 20 October 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings. They also raised other complaints under the provisions of the Convention and Protocol No. 7.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 6 § 1 OF THE CONVENTION

6. The applicants complained principally of the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings. They relied, expressly or in substance, on Article 6 § 1 of the Convention, which reads as follows:

Article 6 § 1

"In the determination of ... any criminal charge against him, everyone is entitled to a fair ... hearing ... by an independent and impartial tribunal established by law."

7. The relevant principles of the Court's case-law concerning the requirement of impartiality under Article 6 § 1 of the Convention can be found in the leading case of *Karelin v. Russia* (no. 926/08, §§ 51-57, 20 September 2016, with further references). In that case the Court assessed the national rules of administrative procedure and concluded that the statutory requirements allowing for the national judicial authorities to consider an administrative offence case which falls within the ambit of Article 6 of the Convention under its criminal limb, in the absence of a prosecuting authority, was incompatible with the principle of objective impartiality set out in Article 6 of the Convention.

8. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints.

9. These complaints are therefore admissible and disclose a breach of Article 6 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

10. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Frumkin v. Russia*, no. 74568/12, §§ 81-142, 5 January 2016, concerning disproportionate measures taken by the authorities against organisers and participants of public assemblies, *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, 7 February 2017, concerning restrictions on location, time or manner of conduct of public events, and *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 178-91, 10 April 2018, concerning lack of a suspensive effect of an appeal and immediate execution of a sentence of administrative detention.

IV. REMAINING COMPLAINTS

11. As regards other complaints under Article 6 of the Convention about the administrative-offence proceedings, submitted by some applicants, the Court, having reached the conclusion about the lack of impartiality of the

tribunal under Article 6 of the Convention (see paragraph 9 above), does not consider it necessary to examine them separately.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

12. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

13. Regard being had to the documents in its possession and to its case-law (see, in particular, *Kuratov and Others v. Russia* [Committee], nos. 24377/15 and 2 others, 22 October 2019), the Court considers it reasonable to award the sums indicated in the appended table.

14. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the absence of the prosecuting party in administrative-offence proceedings and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to deal separately with the remainder of the applicants' complaints under Article 6 of the Convention concerning the administrative-offence proceedings against them;

3. *Holds* that these applications disclose a breach of Article 6 § 1 of the Convention concerning the lack of impartiality of the tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings;

4. *Holds* that there has been a violation of the Convention and its Protocol as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 10 November 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 6 § 1 of the Convention
(lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	17230/19 19/03/2019	**Lavrentiy Viktorovich TSVETKOV** 1993	Mezak Ernest Aleksandrovich Syktyvkar	administrative detention of 10 days	20/09/2018, St Petersburg City Court	Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Under Article 20.2 § 6.1 of CAO, the applicant was sentenced to 10 days of administrative detention for participating in the demonstration against the pension reform in St Petersburg on 09/09/2018. Final decision - 20/09/2018, St Petersburg City Court.	3,900
2.	20232/19 03/04/2019	**Oleg Vyacheslavovich SHACHIN** 1976	Pomazuyev Aleksandr Yevgenyevich Vilnius	administrative fine of RUB 150,000	23/11/2018, Murmansk Regional Court	Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Under Article 20.2 § 8 of CAO, the applicant was sentenced to an administrative fine of RUB 150,000 for organising and participating in the demonstration against the pension reform in Murmansk on 09/09/2018. Final decision - 23/11/2018, Murmansk Regional Court.	3,900
3.	27865/19 30/04/2019	**Pavel Aleksandrovich SOLDATENKO** 1988	Fedotova Yuliya Yekaterinburg	administrative fine of RUB 10,000	19/12/2018, Sverdlovsk Regional Court	Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Under Article 20.2 § 5 of CAO, the applicant was sentenced to the administrative fine of RUB 10,000 for participating in the demonstration against the pension reform in Yekaterinburg on 09/09/2018. Final decision - 19/12/2018, Sverdlovsk Regional Court.	3,900
4.	29615/19 22/05/2019	**Andrey Vladimirovich TRUSOV** 1997	Bushmakov Aleksey Vladimirovich Yekaterinburg	administrative fine of RUB 10,000	25/12/2018, Sverdlovsk Regional Court	Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Under Article 20.2 § 5 of CAO, the applicant was sentenced to the administrative fine of RUB 10,000 for participating in the demonstration against the election of Putin in Yekaterinburg on 05/05/2018. Final decision - 19/12/2018, Sverdlovsk Regional Court.	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
5.	30631/19 22/05/2019	**Daniil Sergeyevich PUGIN** 1991	Bushmakov Aleksey Vladimirovich Yekaterinburg	administrative detention of 4 days	18/05/2019, Sverdlovsk Regional Court	Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Under Article 20.1 § 2 of CAO, the applicant was sentenced to the administrative detention of 4 days for participating in the demonstration against construction of a church in Yekaterinburg on 14/05/2019. Final decision - 18/05/2019, Sverdlovsk Regional Court; .Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant on 15/05/2019 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 186-188, 10 April 2018; *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019)	3,900

[1] Plus any tax that may be chargeable to the applicants.